

MUTUAL NON-DISCLOSURE AGREEMENT

Two-Way / Mutual · Atlas One Solutions

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of **[effective date]** (the "Effective Date"), by and between **Atlas One Solutions** ("Atlas One Solutions"), and **Test Counterparty Inc.** ("Test Counterparty Inc."). Each party may disclose to and receive Confidential Information from the other. Each party, in its capacity as the party disclosing Confidential Information, is a "Disclosing Party," and each party, in its capacity as the party receiving Confidential Information, is a "Receiving Party." Atlas One Solutions and Test Counterparty Inc. are collectively the "Parties."

1. PURPOSE

The Parties wish to explore and/or engage in a business relationship concerning **[purpose of disclosure]** (the "Purpose"). In connection with the Purpose, each Disclosing Party may disclose to the other party certain Confidential Information as defined below.

2. DEFINITION OF CONFIDENTIAL INFORMATION

For purposes of this Agreement, "Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, electronically, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information includes, without limitation: business plans, financial information, customer and client lists, pricing, methods, processes, software, technical data, trade secrets, and know-how.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that the Receiving Party can demonstrate:

- is or becomes publicly available through no wrongful act or breach of this Agreement by the Receiving Party;
- was already known to the Receiving Party prior to disclosure, without an obligation of confidentiality;
- is independently developed by the Receiving Party without use of or reference to the Confidential Information;
or
- is rightfully received from a third party who is not under a duty of confidentiality to the Disclosing Party.

4. OBLIGATIONS OF THE RECEIVING PARTY

Each Receiving Party agrees to: (a) use the Confidential Information solely for the Purpose and for no other purpose; (b) protect the Confidential Information using at least the same degree of care it uses for its own confidential information, and in no event less than a reasonable degree of care; and (c) not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party, except to its employees, agents, or advisors who have a legitimate need to know for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement.

5. TERM AND SURVIVAL

This Agreement shall commence on the Effective Date and continue for a period of **2** year(s), unless earlier terminated by either party upon written notice. The obligations of confidentiality set forth herein shall survive the

termination or expiration of this Agreement and continue for a period of **3** year(s) thereafter, or, with respect to any Confidential Information that constitutes a trade secret, for as long as such information remains a trade secret under applicable law.

6. RETURN OR DESTRUCTION OF MATERIALS

Upon the termination or expiration of this Agreement, or upon written request by the Disclosing Party, each Receiving Party shall promptly return or destroy all materials containing Confidential Information, including all copies, notes, and derivatives thereof, and shall, upon request, certify in writing that it has done so. Notwithstanding the foregoing, the Receiving Party may retain one copy solely for legal or compliance archival purposes, subject to continuing confidentiality obligations.

7. NO LICENSE OR RIGHTS GRANTED

Nothing in this Agreement shall be construed as granting the Receiving Party any license, right, title, or interest in or to any Confidential Information, patent, copyright, trademark, trade secret, or other intellectual property of the Disclosing Party, whether by implication, estoppel, or otherwise. All Confidential Information remains the sole and exclusive property of the Disclosing Party.

8. REMEDIES AND INJUNCTIVE RELIEF

Each party acknowledges that any breach or threatened breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive and other equitable relief, without the necessity of posting a bond, in addition to any other remedies available at law or in equity.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of **Utah**, without regard to its conflict-of-laws principles.

10. DISPUTE RESOLUTION

The Parties consent to the exclusive jurisdiction of the state and federal courts located in the State of **Utah** for the resolution of any dispute arising out of or relating to this Agreement, and waive any objection to venue in such courts. The prevailing party in any such action shall be entitled to recover its reasonable attorneys' fees and costs.

11. MISCELLANEOUS

- **Entire Agreement.** This Agreement constitutes the entire understanding between the Parties concerning its subject matter and supersedes all prior or contemporaneous agreements, whether written or oral.
- **Amendments.** No amendment or modification of this Agreement shall be effective unless made in writing and signed by both Parties.
- **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- **No Waiver.** The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that or any other provision.
- **Assignment.** Neither party may assign this Agreement or any of its rights or obligations hereunder without the prior written consent of the other party, except in connection with a merger, acquisition, or sale of substantially all of its assets.

12. ACCEPTANCE

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

13. ACKNOWLEDGEMENT

ACKNOWLEDGEMENT

Each party acknowledges it has read and understood the attached Hold Harmless and Acknowledgement, including that Atlas One Solutions is not a law firm, this document is not legal advice, each party is responsible for its own compliance, each party has had the opportunity to have counsel review this document before use, and this document was prepared from information the parties supplied.

Atlas One Solutions

Test Counterparty Inc.

Signature

Signature

Name:

Name:

Title:

Title:

Date

Date

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HOLD HARMLESS & ACKNOWLEDGEMENT

Atlas One Solutions

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1. NATURE OF SERVICES, NOT A LAW FIRM

Atlas One Solutions provides business support and document preparation services. Atlas One is not a law firm, does not practice law, and does not provide legal advice; is not a certified public accounting firm and does not provide tax advice; and is not a party's fiduciary. No attorney client, accountant client, or fiduciary relationship is created.

2. INDEPENDENT PROFESSIONAL REVIEW

Atlas One has advised the requesting party, and that party agrees, to have its own licensed attorney review any document before using or relying on it.

3. PARTY RESPONSIBILITIES

Each party is solely responsible for the accuracy and completeness of all information it provides and for its own compliance with applicable law.

4. DISCLAIMER OF WARRANTIES

This document is provided as is and as available, without warranty of any kind, express or implied, including any implied warranties of merchantability or fitness for a particular purpose, and without any warranty that it is accurate, complete, or compliant with or enforceable under the laws of any jurisdiction. Laws change and depend on specific facts.

5. HOLD HARMLESS

The requesting party agrees to hold Atlas One harmless from and against any and all claims, losses, damages, liabilities, penalties, fines, costs, and expenses arising out of or relating to that party's use of this document or its failure to obtain independent professional review.

6. INDEMNIFICATION

The requesting party shall defend, indemnify, and hold harmless Atlas One and its owners, members, managers, officers, employees, contractors, and agents from and against any and all claims, demands, actions, proceedings, losses, damages, liabilities, penalties, fines, costs, and expenses, including reasonable attorney fees, arising out of or relating to that party's use of or reliance on this document, inaccurate or incomplete information that party provided, that party's failure to obtain independent legal review, or that party's violation of any law.

7. LIMITATION OF LIABILITY

To the maximum extent permitted by law, Atlas One's total liability arising out of or relating to this document will not exceed the total fees actually paid to Atlas One for the specific document giving rise to the claim, and Atlas One will not be liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits.

8. GOVERNING LAW

This Agreement is governed by the laws of the State of Utah. If any provision is held unenforceable, it will be modified to the minimum extent necessary and the rest remains in effect.

ACKNOWLEDGEMENT

By signing below, the parties acknowledge they have read and understood this Hold Harmless and Acknowledgement, including that Atlas One Solutions is not a law firm, this is not legal advice, each party is responsible for its own compliance, each party has had the opportunity to have counsel review the attached document before use, and the attached document was prepared from information the parties supplied.

Atlas One Solutions LLC

Requesting Party

Signature / Name / Title

Signature / Name / Title

Disclaimer: Atlas One Solutions is not a law firm and this document is not legal advice. Atlas One recommends that each party have this Agreement reviewed by its own attorney before signing.